

EXHIBIT B

Claim # A31828

Confidential Settlement Communication

MORGAN & MORGAN

June 6, 2023

ELECTRONIC MAIL:

Sallen2@landstar.com



Ms. Stephanie Allen
Risk Management Claim Services, Inc.
13410 Sutton Park Drive, South
Jacksonville, FL 32224

Re: Ricky Forest v. Old Republic Insurance Company, et al
The State Court of Gwinnett County 23-C-03789-S6

10 DAY TIME LIMIT DEMAND

Dear Ms. Allen:

As you are aware, our firm has been retained to represent Ricky Forest for his personal and bodily injury claims against your insured. This notice and offer of compromise is directed to you as the representative of Michael Garza and Landstar Ranger, Inc. pursuant to O.C.G.A. § 13-6-11 and General Ins. Co., v. Holt, 262 Ga. 267 (1992). This communication is only intended for the use of compromise and is not permitted to be submitted as evidence in Georgia or Federal courts pursuant to O.C.G.A. § 24-4-408. This demand is submitted to resolve Ricky Forest's personal and bodily injury claims.

I am sending this offer just to ensure that Old Republic Insurance Company has this opportunity to pay its policy limits in resolution of this case and to protect its insureds. We plan to pursue your clients' personal and corporate assets as well as garnish wages to satisfy an excess verdict in full if our final demand is not paid timely. While this final offer to resolve is pending, Mr. Michael Garza should be advised to retain personal counsel given his exposure to personal liability due to Old Republic Insurance Company's actions or lack thereof. Such an attorney, who is not paid by or retained by Old Republic Insurance Company, may be able to protect Mr. Garza's personal assets and future wages. This communication is only intended for the use of compromise and is not permitted to be submitted as evidence in Georgia or Federal courts pursuant to O.C.G.A. § 24-4-408.

Mr. Forest has incurred significant medical expenses with future medicals forthcoming. Noble Cooper, D.D.S. noted multiple fractured teeth requiring a 3-unit bridge and 4 crowns and diagnosed a **30% permanent disability to his teeth and TMJ.**

MRI FINDINGS:**Lumbar Spine:**

- L3-4: Edema within interspinous ligament from interspinous ligament tears.
- L4-5: **bulging of the disc resulting in anterior impression on the thecal sac.**
- L5-S1: **bulging of the disc resulting in anterior impression on the thecal sac.**

Cervical Spine:

- C2-5: **bulging of the disc resulting in anterior impression on the thecal sac.**
- C5-6: **posterior disc herniation indenting the anterior surface of the thecal sac.**
- C6-7: **posterior disc herniation indenting the anterior surface of the thecal sac.**

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- C7-T1: bulging of the disc resulting in anterior impression on the thecal sac.

ECONOMIC DAMAGES:

<u>Provider</u>	<u>Amount</u>
Carolina Neurosurgery & Orthopedics	TBD
Clermont Radiology	\$3,200.00
Noble Cooper, D.D.S.	\$12,110.00
Wiseman Family Chiropractic	TBD

Total Medical Bills to Date: \$15,310.00 to date**PERMANENT IMPAIRMENT AND FUTURE MEDICAL TREATMENT**

Mr. Forest's life was abruptly interrupted by the negligence of your insured when he had to seek medical treatment to mitigate the injuries he sustained in this crash. Ricky Forest has consistently suffered, and experienced headaches, stiffness and pain when standing and walking, and difficulty sleeping caused by the injuries he sustained in the crash.

In the event this claim does not resolve in accordance with the terms and conditions of this demand, Plaintiff will present a customary per diem argument to the jury for non-economic damages.

OFFER OF COMPROMISE

It is my understanding that your insured carried \$1,000,000.00 in underlying liability limits. This has been confirmed by your company's coverage disclosure. If this information is incorrect, this demand is automatically adjusted to the full policy limits available to my client. Based on your insured's negligence and the injuries of Ricky Forest, including but not limited to Mr. Forest's bodily injuries, impairments, economic damages, and non-economic damages, the value of this case is well in excess of your insured's policy limits. Nevertheless, in an effort to compromise this case now and allow OLD REPUBLIC INSURANCE COMPANY an opportunity to provide its insured with the most protection possible, we hereby issue this offer to compromise if, and only if, Old Republic Insurance Company accepts this offer of compromise unequivocally and without variance of any sort.

The material terms of this written offer of compromise to OLD REPUBLIC INSURANCE COMPANY made are as follows:

- 1 The time period within which this demand must be accepted in writing and in their entirety is 10 days from your receipt of this offer;
- 2 The amount of monetary payment is OLD REPUBLIC INSURANCE COMPANY's bodily injury liability policy limit of \$1,000,000.00. If OLD REPUBLIC INSURANCE COMPANY's bodily injury liability policy limit is any amount other than \$1,000,000.00, or if there are additional policies of insurance, such as umbrella coverages, available to your insured, then this offer of compromise is hereby automatically adjusted to the full and combined amount of all insurance policy limits available to your insured that could cover the claims identified in this offer of compromise;
- 3 The parties that Ricky Forest will release is Michael Garza and Landstar Ranger, Inc. except to the extent other insurance is available;
- 4 Michael Garza and Landstar Ranger, Inc. must execute Affidavits of No Additional Insurance Coverage;
- 5 Ricky Forest cannot offer a full and final release or a general release at this time; instead, the type of release that Ricky Forest will provide to Michael Garza and Landstar Ranger, Inc. is a release that is limited so that it will not prejudice Ricky Forest's rights to seek recovery from any other insurance coverage that may be available, and Ricky Forest will not agree to a release of any other type; and

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- 6 The claims to be released by Ricky Forest pursuant to the type of release described in paragraph 4 immediately above are "all personal and bodily injury claims only." Ricky Forest will not release any other claims of any other kind or description.
- 7 Settlement draft made payable to the Morgan & Morgan Atlanta PLLC for the benefit of Ricky Forest, Tax ID 20-4419049, sent to my direct attention and received in our office, located at 11605 Haynes Bridge Road, Suite 490, Alpharetta, GA 30009.
- 8 Your named insured and the insured driver/tortfeasor will be released except to the extent other insurance is available, but we do not release "all other persons, firms, corporations, etc.", nor do we allow similar language in releases;
- 9 We will release your company, but not unrelated companies;
- 10 All bodily injury claims arising out of the incident at issue described above will be released, but not diminution in value or property damage claims;
- 11 Only the client referenced herein shall be on the release as a required signatory and releasing party. Because the attorney is not a party the settlement, the attorney will not sign the release under any conditions;

Acceptance of the material terms is to be made by providing written acceptance of the material terms outlined immediately above in their entirety.

Providing written acceptance of the material terms outlined above pursuant to in their entirety is necessary to form a binding settlement contract, but it is not sufficient to form a binding settlement contract. In addition to the above, the following acts are material to acceptance and must be completed without variance of any sort to form a binding settlement contract:

1. Payment is required within 10 days after the written acceptance of this offer of compromise. Timely receipt of payment is a material condition of acceptance. If payment is made in a form that requires a payee, payment must be made to "Morgan & Morgan Atlanta, PLLC for the benefit of Ricky Forest." The Tax I.D. for and Morgan & Morgan Atlanta, PLLC is 20-4419049. Our firm's W-9 is attached. If full payment is not received by the deadline, then this offer has not been accepted and there is no agreement.
2. All communications to this firm initiated by or on behalf of OLD REPUBLIC INSURANCE COMPANY or its insured relating to this offer of compromise must be made in writing. If a communication to this firm relating to this offer of compromise is initiated by or on behalf of OLD REPUBLIC INSURANCE COMPANY or its insured in any form other than writing, it will be a rejection of this offer of compromise and will cause the immediate and automatic withdrawal of this offer of compromise. This letter constitutes my client's formal offer, and no oral representations made before or after this letter can alter the terms of this offer. If, for any reason, this firm agrees to change this offer in any way, such changes can and will be made only in a writing that is signed by a member of this firm. We will not make or accept any oral offers to resolve this case.
3. OLD REPUBLIC INSURANCE COMPANY must perform the act of delivering a release that fully complies with each and every term and condition of this offer as a condition of acceptance of this offer. The release must not include any additional terms, conditions, or representations by anyone that are not specifically offered in this offer of compromise. If the release includes any additional terms, conditions, or representations by anyone that are not specifically offered in this offer of compromise, it will be a rejection and counteroffer. The release must be received by this firm together with the payment of policy limits as a condition of acceptance of this offer. If OLD REPUBLIC INSURANCE COMPANY does not perform the act of delivering a release that fully complies with each and every requirement of this offer, this offer has not been accepted, and, instead, it will be a rejection of this offer. This firm will not revise the release, re-write the release, or strike through non-complying terms, conditions, or representations in the release to make it comply with this offer. OLD REPUBLIC INSURANCE COMPANY must not try to shift the burden of drafting and/or revising the release to this firm. This firm represents Ricky Forest, and he is adverse to Michael Garza and Landstar Ranger, Inc. In addition to being a conflict of interest, this firm will not incur the time and

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expense necessary to draft or revise a release that is designed to protect Michael Garza and Landstar Ranger, Inc. from Ricky Forest. OLD REPUBLIC INSURANCE COMPANY is the entity obligated to protect its insured. OLD REPUBLIC INSURANCE COMPANY has many lawyers available to it, and OLD REPUBLIC INSURANCE COMPANY or its lawyers must do the work of drafting and delivering a release that fully complies with this offer as a condition of acceptance of this offer.

The release must not include a signature line for anyone other than Ricky Forest, and the inclusion of a place on the release for a signature of anyone other than Ricky Forest for any purpose at all will be a counteroffer and rejection of this offer of compromise. This offer does not include indemnification or the waiver of any rights or claims not specified herein. The release must not be a contract under seal, and inclusion of the word "seal" anywhere in the release will be a rejection of this offer. The payment is not sufficient to fully compensate Ricky Forest, and inclusion of the word "sufficient" or any of its derivatives, such as "sufficiency," anywhere in the release will be a rejection of this offer. Additionally, if there is any language in the release or any other document you send us that requires Ricky Forest to state, swear, or guarantee that there are no medical liens or hospital liens, that medical liens or hospital liens have been paid or satisfied, or to state, swear, or guarantee that there are no bankruptcy proceedings relating to Ricky Forest, it will be a counteroffer and rejection. A requirement or a request for a "Lien Affidavit" or similar document by any other name or similar language contained in the release will be a counteroffer and rejection. If there are any valid rights of any trustee (bankruptcy or other), estate (bankruptcy or other), medical provider, or lienholder to make claims against the proceeds of this compromise, this firm will, as required by law, take reasonable steps to resolve those claims and/or liens from the proceeds of the compromise up to the total amount of the proceeds of the compromise after the deduction of attorneys' fees and costs.

In addition to the requirements for the release, neither the settlement payment nor any other document sent by OLD REPUBLIC INSURANCE COMPANY can include any terms, conditions, restrictions, descriptions, or representations that are not permitted in the release. If OLD REPUBLIC INSURANCE COMPANY sends any document (e.g., the written acceptance, the release, the settlement check, etc.) that includes any terms, conditions, restrictions, descriptions, or representations that are not permitted in the release, it will be a counteroffer and rejection of this offer.

OLD REPUBLIC INSURANCE COMPANY may, if it so chooses, include a statement in the release of compliance with O.C.G.A. § 33-7-12, and Ricky Forest will acknowledge notice in writing of lack of consent of Michael Garza and Landstar Ranger, Inc. to this compromise and that Michael Garza and Landstar Ranger, Inc. is not precluded from further assertion of claims against Ricky Forest. However, the release must not include any language about OLD REPUBLIC INSURANCE COMPANY, Michael Garza, or Landstar Ranger, Inc. denying liability. The release must not include any language about OLD REPUBLIC INSURANCE COMPANY, Michael Garza, or Landstar Ranger, Inc. making or not making any admissions regarding fault or liability. If OLD REPUBLIC INSURANCE COMPANY includes any terms, conditions, or representations in the release that are not expressly permitted by this offer, it will constitute a counteroffer and rejection of this offer.

Each and every requirement for acceptance of this offer and every term and condition herein is material and is based on reasons important to Ricky Forest. Additionally, although any requirements or requests for terms, conditions, or representations that are not approved herein will constitute a counteroffer and rejection of this offer of compromise, if you feel that any part of this letter needs clarification in order for you to comply with its terms or conditions, you may contact us in writing, and we will be happy to offer that clarification so that you have a full and fair opportunity to comply with and accept this offer. If you have any questions at all or want any explanations at all regarding this offer, please do not hesitate to contact me in writing at the above address or by email at bcollins@forthepeople.com or by facsimile at (404) 496-7372. In our experience, communications that are not in writing can lead to confusion, disagreements, and even extended litigation. Accordingly, a material part of this offer is that it will be a rejection of this offer if any communications to this firm from OLD REPUBLIC INSURANCE COMPANY or any of its employees, agents, subcontractors, subsidiaries, or representatives relating in any way to Michael Garza, Landstar Ranger, Inc., Ricky Forest, the subject collision, or this offer are not in writing. Pursuant to O.C.G.A. § 9-11-67.1(d), OLD REPUBLIC INSURANCE COMPANY shall have the right to seek clarification regarding

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terms, liens, subrogation claims, standing to release claims, medical bills, medical records, and other relevant facts. An attempt to seek reasonable clarification shall not be deemed a counteroffer.

Enclosed please find all medical records and medical bills in our possession, which document the claim of Ricky Forest to assist you in your evaluation. Please review the enclosed information and contact my Paralegal, Jeanne Dodge at (770) 576-7639 or jdodge@forthepeople.com to discuss settlement prior to our initiation of litigation. My direct contact is (404) 965-1973 should you have any questions or require any other information to fairly evaluate this claim. We look forward to hearing from you soon in this regard.

Sincerely,

A handwritten signature in black ink, appearing to read 'WJ Collins', with a long horizontal flourish extending to the right.

William J Collins

Enclosures

AFFIDAVIT OF NO ADDITIONAL INSURANCE

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STATE OF GEORGIA

COUNTY OF _____

Personally, appeared before the undersigned office, duly authorized by law to administer oaths, Michael Garza and Landstar Ranger, Inc., who, having first been duly sworn, deposes and says on oath he following:

1. At the time of the March 22, 2023 collision, my vehicle was not used for business of any person or entity.
2. At the time of the March 22, 2023 collision, my vehicle was not used for any other person or entity heading to or from work.
3. I have made a diligent review of all my insurance records and spoken with my insurance agent(s) and can locate no other policies of insurance or sources of insurance coverage for this loss other than my OLD REPUBLIC INSURANCE COMPANY policy number 2011858404 in the amount of \$1,000,000.00 per person and \$50,000.00 per accident for bodily injury per occurrence.

Michael Garza and Landstar Ranger, Inc.

SWORN TO AND SUBSCRIBED
BEFORE ME THIS _____ DAY
OF _____, 2023

NOTARY PUBLIC

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